

PLSC 476: Empirical Legal Studies

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Court Data: Sources

- **Official** sources – the courts themselves; administrative agencies, etc.
- **Data aggregators** – both non-profit and for-profit
- **Researchers** – academic and non, individuals and teams

SCOTUS: Official (& Semi-Official) Sources

- [The U.S. Supreme Court](#)
 - ↑ Decent search functionality
 - ↓ Everything interesting is entombed in PDFs
- [The U.S. Supreme Court Center @ Justia](#)
- [SCOTUSBlog](#)
 - Good reporting, etc.
 - Liveblogging on “decision days”
 - Some useful things about the current term on the “[Statistics](#)” page
- [The Oyez Project](#) (SCOTUS oral arguments)

SCOTUS: The Supreme Court Database (SCDB)

- The [main data page](#) contains:
 - “Modern” database (OT1946-2024)
 - “Legacy” database (OT1791-1945)
 - Codebooks/documentation, code archive, applet for “analysis”
- Two broad types of organization:
 - “Case-centered” = one line of data per case → parties, outcomes, etc.
 - “Justice-centered” = one line of data per justice per case (i.e., typically nine lines of data for each case) → votes
- What’s a “case”?
 - *Citation* = one line per U.S. citation (all “Legacy” data is citation-level)
 - *Docket number* = one line per docket number/filing
 - *Issue* = one line per issue raised in a case
 - *Issue + Split Vote* = like issue, but includes “split” coalitions
 - When in doubt, go with *docket number*

The Supreme Court Database (continued)

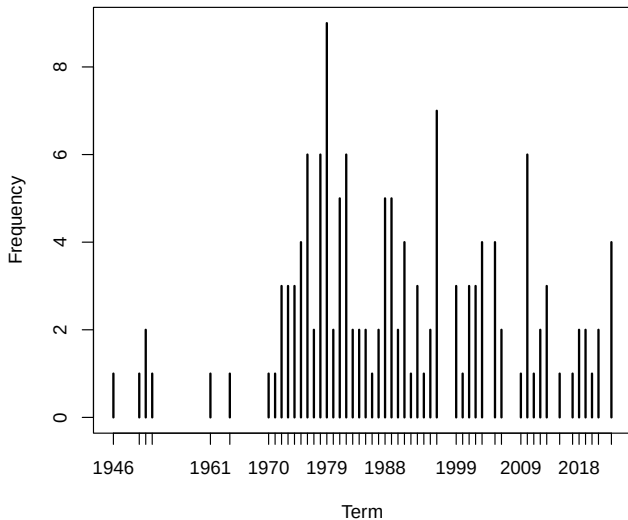
- Case-level variables include:

- Case Identifiers
- Term of case
- Dates of Arguments & Decision
- Petitioner / Respondent
- Manner of Jurisdiction
- Origin of Case
- Issue(s) Presented
- Lower Court Disposition
- Legal Provision(s)
- Final Disposition
- Decision Type
- Winning Party
- Vote Margin
- Opinion Writers

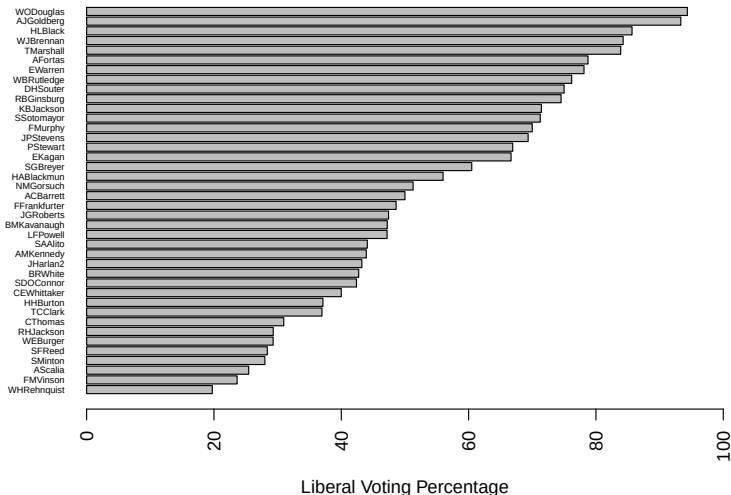
- Justice-level variables add:

- Vote of each Justice
- Majority/minority Status
- Opinion writing
- “Agreements”

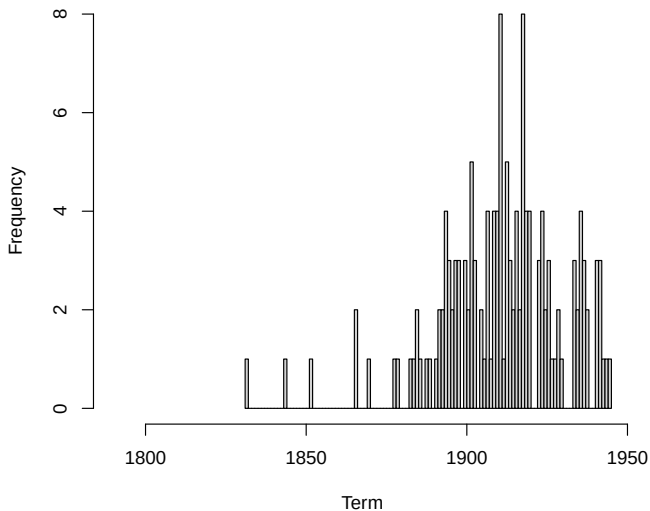
Example: Privacy Cases By Term, 1946-2024



Example: Liberal Voting in First Amendment Cases



“Legacy” Data: Tribal Cases By Term, 1791-1945



SCOTUS: The Justices

- The U.S. Supreme Court Justices Database

- Demographic / biographical / professional data on all 118 justices
- Includes personal backgrounds, nomination/confirmation data, retirement/death circumstances
- Documentation / codebook is [here](#)
- Important note:

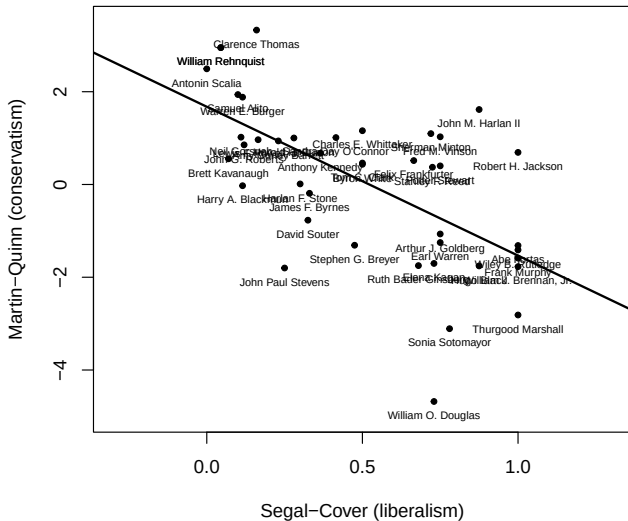
“The unit of analysis in the database is the nominee or appointee (in the case of a recess appointment). Accordingly, the same person could appear more than once. E.g., William Rehnquist, who was nominated in 1971 (associate justice) and in 1986 (chief justice).”

Example: Justices' Year and Age of Nomination

SCOTUS: Ideology Measures

- “Segal-Cover” Scores
 - Measure left/right ideology + “qualifications”
 - Based on content analyses of newspaper editorials from his/her nomination (pre-confirmation)
 - *One value per justice* (do not change over time)
- “Martin-Quinn” Scores
 - Measure left/right ideology
 - Based on the justices’ votes while they are on the Court (via a psychometric model)
 - Data contain one score for each justice for each term on the Court; scores can (but need not) change over time

Segal-Cover vs. Martin-Quinn Scores



SCOTUS: Other Useful Things

- The [Supreme Court Opinion-Writing Database](#) (Burger Court, 1969-1985)
- Measures of [Supreme Court case salience](#)
- Supreme Court *amicus curiae* and confirmation [data](#) (via Paul Collins)
- The [Blackmun Papers](#) archive
- The Supreme Court at [Free.law](#) (bulk data + REST API)
- [Records of the Supreme Court of the United States](#) (at the National Archives)
- The [Empirical SCOTUS](#) blog

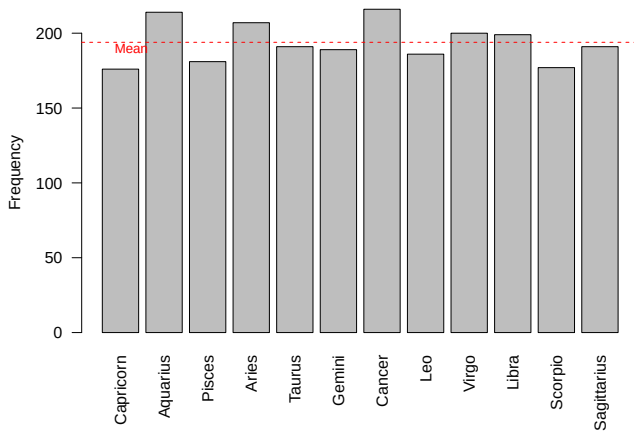
The U.S. Courts of Appeal

- Twelve official websites (e.g., the [Third Circuit Court of Appeals](#))
- The [U.S. Court of Appeals Database](#)
 - Similar to the SCDB, but for all 12 Courts of Appeals
 - Data for 1925-2002
 - Stratified samples of cases by circuit & term
 - Case-level *only*, but includes judge-vote data
- Ideology:
 - [Giles, Hettinger, and Peppers](#) measures (based on Presidential + Senate ideology scores; codebook [here](#))
 - “[Common space](#)” scores (placing federal judges on a common left-right metric)

All Federal Courts

- The [Administrative Office of the Federal Courts](#):
 - Detailed data on [caseloads](#), [dockets](#), etc.
 - [Court management statistics](#), [authorized judgeships](#), and [judicial salaries](#)
 - [PACER](#) (federal court records/decisions; \$\$\$)
 - The FJC's [Biographical Directory of Article III Federal Judges, 1789-present](#) (fantastic, but complicated)
- The FJC's [Integrated Database](#) (civil and criminal filings and terminations in the U.S. district, bankruptcy, and appellate courts)
- [Attributes of U.S. Federal Judges](#) database
- An [Institutional History of the U.S. District Courts](#) (PDFs)
- The [Court Listener](#) (bulk data + APIs; also includes territorial + specialized + state supreme courts)

All Federal Judges, Ever, By Zodiac Sign



U.S. State Supreme Courts

- Official sites (e.g., [Pennsylvania's](#)) – vary widely in quality
- The [State Supreme Court Database](#) (also [here](#))
 - Cases from all 52¹ state high courts
 - Stratified sample, only from 1995-1998
 - Otherwise similar to SCDB
- [State Supreme Court Election Data](#)
 - Data from 1946-2016, for all states
 - Detailed information on election rules, races, and election results
- The [Court Statistics project](#) at the [National Center for State Courts](#)
- The [Court Listener](#) (as above)

¹Texas and Oklahoma have separate supreme courts for criminal and civil matters. 17 / 19

Cross- and Trans-National Courts

- Official sites (vary widely in quality / usefulness):
 - Global: The [ICJ](#), the [ICC](#), the [ITLoS](#), the [Permanent Court of Arbitration](#), [ICSID](#), etc.
 - Europe: The [ECJ](#), the [ECHR](#), the [GCEU](#), the [ETFA Court](#), and the [LCIA](#)
 - Asia/Oceania: the [AIHCR](#), and the [SIAC](#)
 - Africa: the [ACHPR](#), and [COMESA](#)
 - The Americas: the [IACHR](#), the [Court of Justice of the Andean Region](#) (ATJ), and the [CCJ](#)
- The [National High Courts Database](#) (data on national high courts from 11 countries, various years)
- [PluriCourts](#) at the University of Oslo (see their [dataverse](#))

- The EEOC Litigation Project
- The Civil Rights Litigation Clearinghouse
- The Judicial Elections Data Initiative
- TracReports (federal administrative enforcement) (\$\$\$)
- Data on state court organization, via the BLS
- The UFL/Lopucki Bankruptcy Database
- The Discography: A Legal Encyclopedia of Popular Music
- Olympalex (sports law database)